

[Ch. cxxxiv.] *Churches and* [20 & 21 GEO. 5.]
Universities (Scotland) Widows' and Orphans' Fund
Order Confirmation Act, 1930.

A.D. 1930.

SCHEDULE.

THE CHURCHES AND UNIVERSITIES (SCOTLAND)
WIDOWS' AND ORPHANS' FUND.

Provisional Order to provide for the amalgamation of the Church of Scotland Ministers' and Scottish University Professors' Widows' Fund and the Free Churches (Scotland) Widows' and Orphans' Fund to incorporate the Trustees of the Churches and Universities (Scotland) Widows' and Orphans' Fund to confer powers on the Trustees hereby incorporated and to confer powers on the Church of Scotland General Trustees in regard to vacant stipend.

WHEREAS the Church of Scotland Ministers' and Scottish University Professors' Widows' Fund is incorporated by the Church of Scotland Ministers' and Scottish University Professors' Widows' Fund Orders 1923 and 1926 for the purpose of making provision for the widows and children of the ministers of the Church of Scotland and for the widows and children of professors in the Universities of Scotland :

14 & 15 Vict.
c. lxxviii.
51 & 52 Vict.
c. clxii.
5 Edw. 7.
c. xii.

And whereas the Free Churches (Scotland) Widows' and Orphans' Fund is incorporated by the Free Church of Scotland Ministers' and Missionaries' Widows' and Orphans' Fund Acts 1851 and 1888 and the Free Churches (Scotland) Widows' and Orphans' Fund Order 1907 made by the Commissioners appointed under the Churches (Scotland) Act 1905 for the purpose of making provision for the widows and children of the ministers professors and missionaries of the United Free Church of Scotland and the Free Church of Scotland :

And whereas the Church of Scotland and the United Free Church of Scotland have been united into one Church under the name of " the Church of Scotland " by Act of the General Assembly of the Church of Scotland dated the first day of October one thousand nine hundred and twenty-nine by Act of the General Assembly of the

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United Free Church of Scotland dated the first day of October one thousand nine hundred and twenty-nine and by an Act of the first General Assembly of the Church united under the said name of the Church of Scotland dated the second day of October one thousand nine hundred and twenty-nine : A.D. 1930.
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And whereas it is expedient to amalgamate the said Church of Scotland Ministers' and Scottish University Professors' Widows' Fund and the Free Churches (Scotland) Widows' and Orphans' Fund so as to provide one fund for making provision for the widows and children of the ministers professors and missionaries of the Church of Scotland of the professors in the Universities of Scotland and of the ministers professors and missionaries of the Free Church of Scotland :

And whereas by the Act of Parliament passed in the fifty-fourth year of the reign of His Majesty King George the Third chapter 169 it was provided that where any parish in the Church of Scotland should become vacant and vacant stipend should thereby arise such vacant stipend so far as theretofore applicable by the patron to pious purposes should thenceforth be levied in manner therein mentioned and paid to the general collector of the Church of Scotland Ministers' and Scottish University Professors' Widows' Fund who was authorised to levy and discharge the same and apply the proceeds to the purposes of the Act under the directions of the trustees of that fund :

And whereas the rights of the said Church of Scotland Ministers' and Scottish University Professors' Widows' Fund to vacant stipend were modified by the Church of Scotland Ministers' and Scottish University Professors' Widows' Fund (Amendment) Order 1926 :

And whereas the Church of Scotland General Trustees incorporated by the Church of Scotland (General Trustees) Order 1921 and acting under the provisions of the Church of Scotland (Property and Endowments) Act 1925 are now entitled to receive all vacant stipend subject always to the rights therein of the Church of Scotland Ministers' and Scottish University Professors' Widows' Fund modified as aforesaid :

And whereas it has been agreed between the said general trustees and the trustees of the Church of Scotland

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A.D. 1930. Ministers' and Scottish University Professors' Widows' Fund that after the second day of October one thousand nine hundred and twenty-nine all vacant stipend arising as aforesaid shall be collected by the said general trustees and paid over by them to the committee of the General Assembly of the Church of Scotland in charge of the maintenance of the ministry fund of the Church of Scotland subject to an appropriate deduction therefrom to cover the cost of collection :

And whereas the trustees of the Church of Scotland Ministers' and Scottish University Professors' Widows' Fund have agreed that in lieu and full satisfaction of the whole rights of the Church of Scotland Ministers' and Scottish University Professors' Widows' Fund to vacant stipend arising under any of the foresaid statutes there shall be paid from the said maintenance of the ministry fund to the trustees of the fund hereby incorporated a sum of one hundred and forty thousand pounds payable in instalments of three thousand five hundred pounds per annum half-yearly for a period of forty years from the second day of October one thousand nine hundred and twenty-nine and the General Assembly of the Church of Scotland has by resolution dated the third day of October one thousand nine hundred and twenty-nine approved and confirmed the said agreement and empowered the said committee in charge of the said maintenance of the ministry fund to assume liability for the payment of the said sum of one hundred and forty thousand pounds payable in instalments of three thousand five hundred pounds per annum for a period of forty years as aforesaid as a prior charge on the said maintenance of the ministry fund Provided always that no interest shall be chargeable upon any of the said annual instalments of three thousand five hundred pounds or the half-yearly payments thereof herein provided for unless the same shall be in arrear for a period exceeding three months from the respective terms of payment hereinafter stipulated :

And whereas it is expedient that the said agreement should receive effect as hereinafter provided :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

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Now therefore in pursuance of the powers contained A.D. 1930.
in the last mentioned Act as read with the Secretaries —
of State Act 1926 the Secretary of State orders as
follows :—

1. This Order may be cited for all purposes as the Short title.
Churches and Universities (Scotland) Widows' and
Orphans' Fund Order 1930.

2. This Order shall commence and have effect on Commence-
and from the date of the passing of the Act confirming ment.
this Order which date is hereinafter referred to as "the
commencement of this Order."

3. In this Order the following words and expressions Interpreta-
have the meanings hereby assigned to them respectively tion.
unless there be something in the subject or context
repugnant to such construction :—

"The appointed date" means twelve o'clock noon
on the second day of October one thousand
nine hundred and twenty-nine;

"The Fund" means the Churches and Universities
(Scotland) Widows' and Orphans' Fund con-
stituted by this Order;

"The Church of Scotland fund" means the Church
of Scotland Ministers' and Scottish University
Professors' Widows' Fund as regulated by the
Church of Scotland Ministers' and Scottish
University Professors' Widows' Fund Orders
1923 and 1926;

"The Free Churches fund" means the Free Churches
(Scotland) Widows' and Orphans' Fund incor-
porated by the Free Church of Scotland
Ministers' and Missionaries' Widows' and
Orphans' Fund Acts 1851 and 1888 and the
Free Churches (Scotland) Widows' and Orphans'
Fund Order 1907;

"Universities" means the Universities of St.
Andrews (including University College Dundee)
Glasgow Aberdeen and Edinburgh;

"Recited Acts" means the Church of Scotland
Ministers' and Scottish University Professors'
Widows' Fund Orders 1923 and 1926;

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“The first recited Act” means the Church of Scotland Ministers' and Scottish University Professors' Widows' Fund Order 1923;

“Recited Order” means the Free Churches (Scotland) Widows' and Orphans' Fund Order 1907;

“The Trustees” means the trustees of the Fund;

“The general trustees” means the Church of Scotland General Trustees incorporated by the Church of Scotland (General Trustees) Order 1921;

“The churches” means the Church of Scotland and the Free Church of Scotland;

“General assemblies” means the respective general assemblies of the churches;

“Union” means the union of the Church of Scotland and the United Free Church of Scotland both as existing prior to the second day of October one thousand nine hundred and twenty-nine consummated under the name of the Church of Scotland on that day;

“Mission committees” means the committees appointed by the general assemblies of the churches respectively and known as the Foreign Mission Committee the Committee on Colonial Churches the Jewish Mission Committee the Work on the Continent Committee and the Chaplains to His Majesty's Forces Committee all of the Church of Scotland and the Foreign Mission Committee the Colonial and Continental Mission Committee the Jewish Mission Committee and the Committee on Chaplains to His Majesty's Forces all of the Free Church of Scotland and shall include any other committees or bodies by whatever name they may be called to which the functions of any of those committees may be transferred by the general assemblies of the churches respectively or any new committees of the churches appointed for similar purposes;

“Minister” means an ordained minister of either of the churches (not being a woman) who holds a charge in the United Kingdom or

holds a commission as chaplain to His Majesty's regular forces and includes a colleague and successor or assistant and successor to a minister but does not include a person holding a charge or commission of a temporary nature;

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“ Charge ” or “ benefice ” means the permanent charge in either of the churches of a minister professor or missionary each colleague in a collegiate charge being deemed to hold a separate charge In the case of missionaries and chaplains to His Majesty's regular forces “ charge ” shall include a charge or appointment held by a missionary or chaplain in a definite area or country without parochial limitation;

“ Office ” means the office of a professor other than a professor holding a charge;

“ Missionary ” means a person (not being a woman) whose salary is paid in whole or in part out of the moneys under the charge of the mission committees engaged or to be hereafter engaged in the service of either of the churches in a mission charge beyond the United Kingdom of or belonging to or under the administration of either of the churches or as chaplain to His Majesty's regular forces and shall include (First) an ordained minister labouring beyond the United Kingdom whether as a minister or as a missionary (Second) a principal or professor officiating in any college or educational institution beyond the United Kingdom connected with either of the churches (Third) a medical graduate or licentiate who shall have been set apart by either of the churches for service as a medical missionary beyond the United Kingdom (Fourth) a graduate in arts or science in any university who shall have been set apart by either of the churches for the service of the churches beyond the United Kingdom and (Fifth) a teacher appointed by either of the churches for service beyond the United Kingdom who has obtained a certificate of competency from the Scottish Education

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Department or from any other board to which the duty of granting certificates of competency to teachers in Scotland may hereafter be committed or such other equivalent certificate as may be approved by the Trustees but shall not include a person who is not a European or an inhabitant of the British Empire or of the United States of America nor a person whose parents were not either Europeans or descended on both sides from Europeans;

“Professor” means a principal vice-principal or professor holding office as such in any of the universities or in any college in Scotland connected with either of the churches and in the case of the latter who is admitted to any share of the college funds and shall include a colleague and successor or assistant and successor to a principal or professor but shall not include (a) a woman or (b) a reader or lecturer or any person who shall after the commencement of this Order be admitted to an office under whatever name in any of the universities for a term of years limited otherwise than by an age limit or to an office of a temporary nature;

“Date of admission” in the case of a professor means the date from which his salary begins to run;

“Maintenance of the ministry fund” means the general fund provided by the Church of Scotland for the maintenance of religious ordinances;

“Sustentation fund” means the general fund provided by the Free Church of Scotland for the support of ministers of the Free Church of Scotland;

“College funds” means the general funds provided by annual contribution or otherwise for the support of the professors holding offices in colleges formerly connected with the United Free Church of Scotland and now with the Church of Scotland and in colleges connected with the Free Church of Scotland;

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“Contributor” means a minister or professor who A.D. 1930.

at the appointed date was a contributor to the Church of Scotland Ministers' and Scottish University Professors' Widows' Fund and includes ministers and professors who having been admitted to a benefice or office during the period between twelve o'clock noon on the twenty-second day of November one thousand nine hundred and twenty-eight and the appointed date are entitled to the rights and privileges of that fund in terms of this Order;

“Child” means the lawful child of a contributor or other minister professor or missionary whose widow and children are entitled to the benefits of the Fund and does not include a stepchild or an adopted child although such child may have or acquire the status of a lawful child by or under any Act of Parliament;

“Climatic influence account” means the climatic influence fund retained by the trustees of the Free Churches fund in terms of section 6 of the Free Church of Scotland Ministers' and Missionaries' Widows' and Orphans' Fund Act 1888 and forming part of the Free Churches fund;

“Non-participating congregation” means a congregation of either of the churches the minister of which is not admitted to any share of the maintenance of the ministry fund or sustentation fund whether by way of equal dividend minimum stipend or surplus or in any other way or whose share of the maintenance of the ministry fund or sustentation fund is liable to become less than the payments falling to be made to the Fund in terms of this Order or of the recited Acts or recited Order and includes congregations of the United Free Church of Scotland now of the Church of Scotland the ministers of which did not before union participate in the sustentation fund of the United Free Church and congregations of the Scottish Synod in England;

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“Equal dividend” “minimum stipend” and “surplus” mean the respective classifications by whatever names they may hereafter be known under which payments may be made from the maintenance of the ministry fund or the sustentation fund;

“The treasurer” means the treasurer of the Fund for the time being and includes joint treasurers and assistant treasurers;

“The clerk” means the clerk of the Fund for the time being and includes joint clerks;

“Auditor” includes auditors and joint auditors;

“Actuary” includes actuaries and joint actuaries;

“Stipend” means the whole annual fruits of the benefice whether in the form of stipend proper (exclusive of the glebe as defined under the Glebe Lands (Scotland) Act 1866 but including the income from proceeds of mines quarries or other industrial works on a glebe invested for the benefice) or the income of bequests funds or heritable property where such income is assigned for the permanent endowment of the benefice provided the fund is not expressly excluded from such income;

“Vacant stipend” means the stipend which accrues during the period of a vacancy in a benefice caused by the death translation resignation or deprivation of the minister thereof and which would have vested in such minister had he continued in possession of the benefice according to the law and practice applicable to the benefice for the time being excluding any augmentation of stipend not yet modified at the date of the death translation resignation or deprivation of such minister;

“Rates” means the annual rates entry money contributions marriage taxes and other payments for which contributors are liable;

“Annuity” means an annuity of the Fund.

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4. Save as in the section of this Order the marginal note whereof is "Alteration of annuities" or elsewhere in this Order expressly provided nothing in this Order shall limit the liabilities or prejudice the rights and privileges of—

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 Safe-guarding of rights and liabilities.

- (1) Contributors or the widows and children of contributors in accordance with the provisions set forth in the schedules to this Order; or
- (2) Any minister professor or missionary on behalf of or by whom the annual payments provided for in the recited Order were due and payable at or as at the term of Whitsunday 1929 or who was inducted to a charge or office in the United Free Church of Scotland or the Free Church of Scotland between the term of Whitsunday 1929 and the appointed date or the widow and children of any such minister professor or missionary; or
- (3) Any annuitant or other beneficiary who at the appointed date (i) in the case of the Church of Scotland fund was entitled to the benefits thereof or who would become entitled thereto by survivance up to twelve o'clock noon on the twenty-second day of November one thousand nine hundred and twenty-nine or (ii) in the case of the Free Churches fund was entitled to the benefits thereof or would become entitled thereto by survivance till Martinmas 1929; or
- (4) Any minister professor or missionary to whom the provisions of subsections (1) and (3) of section 11 or the provisions of section 20 of the recited Order apply; or
- (5) Any minister professor or missionary of the United Free Church of Scotland or the Free Church of Scotland who has obtained the benefits of the Free Churches fund for his widow and children in terms of section 15 of the recited Order.

5. The Church of Scotland fund the Free Churches fund and all other property and assets sums of money and payments which by or in pursuance of this Order are vested in the Trustees shall constitute a fund to

Name of Fund.

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A.D. 1930. — be called the “Churches and Universities (Scotland) Widows' and Orphans' Fund” for making provision in one scheme as hereinafter provided for the widows and children of the ministers and missionaries of the Church of Scotland and the Free Church of Scotland and of professors.

Annual
payments
to the Fund.

6.—(1) An annual sum of seven pounds shall be payable to the Fund at the term of Whitsunday in each year in manner and subject to the exceptions specified in this Order—

(i) out of the maintenance of the ministry fund or out of the sustentation fund or out of the funds under the charge of the mission committees—

(a) for or in respect of each and every minister or missionary who at the appointed date shall have been or shall be thereafter admitted to any share of the maintenance of the ministry fund the sustentation fund or the funds under the charge of the mission committees as the case may be whether by way of equal dividend minimum stipend or surplus; and

(b) for or in respect of each and every such minister or missionary now or hereafter emeritus:

Provided always that in the case of a minister of a non-participating congregation the sum to be paid from the maintenance of the ministry fund shall not exceed the amount available for such minister or congregation from the said fund;

(ii) out of the college funds—

(a) for or in respect of each and every professor who at the appointed date shall have been or shall be thereafter admitted to any share of the college funds; and

(b) for or in respect of every such professor now or hereafter emeritus:

(iii) out of the funds or moneys belonging to non-participating congregations in respect of the

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respective ministers and ministers emeriti of such congregations in so far as not met from the maintenance of the ministry fund; A.D. 1930.
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- (iv) by every minister who shall after the appointed date be appointed or inducted to a charge which was a charge in the Church of Scotland before union until by standardisation of stipend or otherwise he shall be admitted to a share of the maintenance of the ministry fund; and
- (v) by every professor not being a professor admitted to a share of the college funds who after the appointed date shall have been or shall be appointed to an office.

(2) The said annual sums of seven pounds shall be payable—

- (a) as at the term of Whitsunday one thousand nine hundred and thirty in so far as respects ministers professors and missionaries inducted or admitted to a charge or appointed to an office as the case may be on or before the fifteenth day of May one thousand nine hundred and thirty; and
- (b) at the term of Whitsunday immediately following the date of their induction or admission to a charge or appointment to an office as the case may be in so far as respects ministers professors and missionaries who shall be inducted or admitted or appointed after the fifteenth day of May one thousand nine hundred and thirty.

(3) The said annual sums payable under paragraphs (i) (ii) and (iii) of subsection (1) of this section shall continue to be paid out of the maintenance of the ministry fund the sustentation fund the funds under the charge of the mission committees out of the college funds and out of the funds or moneys belonging to non-participating congregations respectively at the term of Whitsunday yearly during the lifetime of each such minister professor or missionary or until such minister professor or missionary shall cease to have any share of the maintenance of the ministry fund the sustentation fund funds under the charge of the mission committees

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A.D. 1930. college funds or funds or moneys of non-participating
— congregations respectively.

(4) The said annual sums payable under paragraphs (iv) and (v) of subsection (1) of this section shall continue to be paid on the term of Whitsunday yearly during the lifetime of each such minister or professor or in the case of a minister until admitted to a share of the maintenance of the ministry fund.

(5) No payment shall be made under this section in respect of—

(a) a minister of the Church of Scotland who was a member of the Scottish Synod in England before union unless or until he is translated to another charge of either of the churches or appointed to an office; or

(b) a missionary of the Church of Scotland as existing before union unless or until he is translated to a charge in Great Britain of either of the churches or appointed to an office; or

(c) a contributor who may come to participate in any of the funds mentioned in paragraphs (i) and (ii) of subsection (1) of this section and who is himself bound to continue to pay his rates; or

(d) a minister of a non-participating congregation who has failed to uphold the rights and interests of his widow and children in the Free Churches fund in terms of the recited Order but that only so long as he continues to hold the charge held by him at the appointed date; or

(e) a minister of a non-participating congregation who has not elected in terms of section 15 of the recited Order to obtain the benefits of the Free Churches fund for his widow and children and who has not been translated to a charge in respect of which payments have been made for him but that only so long as he continues to hold the charge held by him at the appointed date; or

(f) any non-participating congregation which has not elected to obtain the benefits of the Free Churches fund for the widow and children of its minister

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in terms of section 12 or section 13 of the recited Order or having elected to obtain those benefits has subsequently forfeited right thereto until the death translation resignation or deprivation of the minister who at the appointed date was minister of such congregation or until such congregation shall cease to be a non-participating congregation by making such regular contributions to the maintenance of the ministry fund as will entitle the minister of such congregation to full participation therein; or

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- (g) any charge in the Scottish Synod in England of the Church of Scotland until the death translation resignation or deprivation of the minister who at the appointed date was holding such charge; or
- (h) any minister professor or missionary who in terms of section 22 of the recited Order was excepted from the benefits of the Free Churches fund subject to the proviso contained in the last mentioned section; or
- (i) the Reverend Alexander Drummond Paterson of Madeira who is now the sole survivor of the ministers specified in section 22 of the recited Order who have ceased to have any share of the sustentation fund and who under the provisions of section 8 of the Free Church Ministers' Widows and Orphans Fund Act 1851 themselves contributed to the Free Churches fund the sums payable by them to obtain the benefits thereof.

7.—(1) In addition to the sums hereinbefore specified the Trustees shall take payment for the Fund from the climatic influence account of such additional annual sums as the Trustees with the advice of their actuary may from time to time determine in respect of each missionary (not being a contributor) in the service of the foreign mission committees already appointed or who may be hereafter appointed to labour in any locality the climate of which is considered by the Trustees to have an injurious effect on longevity which annual sums shall be payable at the same terms as the annual sums payable under the immediately preceding section of this Order

Special
payments
in respect of
climatic
influence.

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(2) In the event of the climatic influence account being exhausted the foreign mission committees of the churches shall make payment to the fund of the annual sums specified in or payable in terms of this section in respect of each missionary in the respective churches for whom such payments fall to be made.

(3) The Trustees shall also receive payment from the Committee on Colonial Churches the Jewish Mission Committee the Work on the Continent Committee and the Chaplains to His Majesty's Forces Committee of the Church of Scotland and the Colonial Mission Committee and the Jewish Mission Committee of the Free Church of Scotland respectively of such annual sums (if any) in respect of each missionary (not being a contributor) already appointed or who may be hereafter appointed by such committees to labour in any place the climate of which is considered by the Trustees to have an injurious effect on longevity as the Trustees shall determine to be reasonable to cover the risk of climatic influences and these extra payments shall in like manner cease to be exigible when the missionary is not in any such place.

Special
payments
by persons
going
abroad.

8. Every minister professor or missionary of the United Free Church of Scotland as existing before union and the Free Church of Scotland appointed after the seventh day of August one thousand eight hundred and eighty-eight and every minister professor or missionary (not being a contributor) appointed after the appointed date who shall proceed to any locality the climate of which is considered by the Trustees to have an injurious effect on longevity shall for the period of his residence in such locality pay such extra annual sum as the Trustees may with the advice of their actuary from time to time determine and if any such extra annual sum be not paid within one year from the date of the intimation to him of the amount due his widow and children shall ipso facto forfeit all right to any benefit from the Fund unless the Trustees in consideration of exceptional circumstances shall otherwise determine.

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9.—(1) As from the appointed date the general trustees shall collect all vacant stipend and shall pay over to the Trustees the share of vacant stipend accrued up to the appointed date to which the Church of Scotland fund is entitled under the recited Acts and as from the appointed date the proportion of vacant stipend to which the Church of Scotland fund is entitled under the recited Acts shall cease to be payable to the Church of Scotland fund or to the Fund and the general trustees shall at the term of Whitsunday and Martinmas in each year pay to the maintenance of the ministry fund the whole vacant stipend collected by them under deduction therefrom of a charge of two per centum thereof to cover the cost of collection.

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 Compensation for
 vacant
 stipend.

(2) There shall be paid to the Fund by the committee of the general assembly of the Church of Scotland in charge of the maintenance of the ministry fund the sum of one hundred and forty thousand pounds sterling which sum shall be paid in forty annual instalments of three thousand five hundred pounds sterling each for a period of forty years from the appointed date payable half-yearly at the terms of Whitsunday and Martinmas in each year beginning the first half-yearly payment of one thousand seven hundred and fifty pounds sterling at the term of Whitsunday one thousand nine hundred and thirty and so forth half-yearly thereafter the last of the said half-yearly payments being that due and payable at the term of Martinmas one thousand nine hundred and sixty-nine but that without interest being chargeable upon any of the said instalments except interest at the rate of five per centum per annum from the expiry of three months from the due term until payment.

(3) (a) The said annual instalments shall be and are hereby constituted a prior charge on the maintenance of the ministry fund ranking next and immediately postponed to the expenses of management of that fund.

(b) The said annual instalments when fully paid shall be in full discharge and satisfaction to the Fund of all claims for vacant stipend accruing after the appointed date to which the Church of Scotland fund would have been entitled under and in terms of the recited Acts.

(4) In respect of the obligation hereby imposed upon the general trustees as to the collection of vacant stipend

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A.D. 1930. and the payment thereof to the maintenance of the ministry fund the general trustees are hereby freed and relieved of and from all liability or claims for vacant stipend at the instance of the Fund as from the appointed date.

Payments
to the
Fund in
respect of
vacant
charges.

10. There shall be payable to the Fund as at the term of Whitsunday in each year after the appointed date the sum of seven pounds—

(1) out of the maintenance of the ministry fund the sustentation fund and the funds of the mission committees in respect of each and every charge in the churches which is vacant at the said term by the death translation resignation or deprivation of any minister or missionary or from any other cause Provided always that in the case of a non-participating congregation the sum to be paid from the maintenance of the ministry fund shall not exceed the amount available for such congregation from the said fund :

(2) out of the college funds in respect of every charge of a professor who was admitted to any share of the college funds which shall happen to be vacant at the said term by the death translation resignation or deprivation of any such professor or from any other cause :

(3) out of the funds or moneys of the respective non-participating congregations in respect of every charge represented by any such congregation which shall be vacant at the said term by the death translation resignation or deprivation of the minister of such congregation or from any other cause in so far as not met from the maintenance of the ministry fund :

Provided always—

(i) that when and as often as a charge shall become vacant by the death translation resignation or deprivation of any minister professor or missionary who was not a contributor or whose widow and children shall not be or would not have been entitled to the benefits of the Fund or

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shall be entitled to the benefits of the Fund only by reason of such minister professor or missionary having obtained the benefits of the Fund under section 15 of the recited Order or under the section of this Order the marginal note of which is "Individual payments in certain cases" no payment shall in that event be made on account of such charge while so vacant;

(ii) that no payment shall be made in respect of any vacant charge on the death translation resignation or deprivation of a colleague and successor or assistant and successor; and

(iii) that no payment shall be made in respect of any vacant charge after the date on which the same shall be formally suppressed as a charge or combined and incorporated with another charge by or under the authority of the general assembly.

11. The general assembly of each of the churches shall within one year from the commencement of this Order declare (a) the number of mission charges recognised and maintained by the church in each definite area or country beyond Great Britain without parochial limitation and the number of missionaries appointed to such charges and (b) the number of chaplains to His Majesty's regular forces recognised as appertaining to or associated with the church and intimation shall be made by the respective committees of the churches to the treasurer of any further missionaries so appointed or of any further chaplains so recognised within six months after their appointment or recognition as the case may be and thereafter on the death translation resignation or deprivation of any such missionary or chaplain a vacant charge shall be held to exist and payment shall be made in respect of such vacant charge until a successor to such missionary or chaplain shall have been appointed or until the total number of such charges in such area or country is reduced by suppression by or under authority of the general assembly of the church which made the appointment.

Charges of
missionaries
and
chaplains.

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—
 Entry
 money and
 marriage
 tax.

12.—(1) The sums hereinafter in this section mentioned shall be payable to the Fund—

- (i) out of the maintenance of the ministry fund the sustentation fund and the funds of the mission committees for or in respect of every minister or missionary admitted to any share thereof Provided always that in the case of a non-participating congregation the sums to be paid from the maintenance of the ministry fund shall not exceed the amount available for such congregation from the said fund;
- (ii) out of the college funds for or in respect of every professor admitted to any share thereof;
- (iii) out of the funds or moneys of the respective non-participating congregations in so far as not met from the maintenance of the ministry fund;
- (iv) by every minister who shall after the appointed date be appointed or inducted to a charge which was a charge in the Church of Scotland before union and shall not by standardisation of stipend or otherwise have been admitted to a share of the maintenance of the ministry fund; and
- (v) by every professor not being a professor admitted to a share of the college funds who shall have been appointed to the office of professor in any of the universities after the appointed date.

(2) The sums hereinbefore in this section referred to are as follows :—

- (a) for or in respect of every minister professor and missionary who after the appointed date has been or shall be inducted or admitted to a charge or office for the first time or who subsequently to his having forfeited the right and interest of his widow and children in the fund as aftermentioned has been or shall be again inducted or admitted to a charge or office—

- (i) if such minister professor or missionary shall at the date of his induction admission

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or readmission be not more than thirty-five years of age the sum of ten pounds; and A.D. 1930.

(ii) if such minister professor or missionary shall at such date be more than thirty-five years of age the sum of fifteen pounds.

The said sums of ten pounds or fifteen pounds as the case may be shall be payable in two equal instalments the first instalment at the first term of Whitsunday after the date of induction or admission or readmission and the second instalment at the second term of Whitsunday after the said date. Provided that if any such minister professor or missionary does not survive the said second term of Whitsunday the second instalment shall not be exigible and that if any such minister professor or missionary ceases before the said second term of Whitsunday to be entitled to a share of any of the said funds the second instalment shall not be payable therefrom but shall be due and payable by such minister professor or missionary;

- (b) for or in respect of every minister professor or missionary who being inducted or admitted to a charge or office after the appointed date shall marry or shall be married at the time of his induction or admission to such charge or office for his marriage and every subsequent marriage the sum of five pounds together with a sum of one pound for every complete year by which his age shall exceed the age of the person whom he shall marry or to whom he may be married and that at the first term of Martinmas which shall happen after three months from the date of his marriage or the date of his induction or admission if then married as the case may be. Provided always that if such minister professor or missionary shall marry a widow who at the time of her marriage with him is in receipt of an annuity payable from the Fund no payment shall be made to the Fund in respect of such marriage.

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(3) No payment of entry money or marriage tax shall be made under this section in respect of (a) a minister of the Church of Scotland who was a member of the Scottish Synod in England before union or (b) a missionary of the Church of Scotland as existing before union unless or until in the case of a minister he is inducted to another charge or admitted to an office or in the case of a missionary is inducted to a charge in Great Britain or admitted to an office (which in each case shall be treated as induction or admission for the first time for the purposes of this section) or unless or until in either case he obtains the benefits of the Fund for his widow and children under and in terms of the section of this Order of which the marginal note is "Individual payments in certain cases."

(4) No payment of entry money or marriage tax shall be made under this section in respect of—

- (a) a contributor who is himself bound to make payment of entry money and marriage tax; or
- (b) a minister of a non-participating congregation who has failed to uphold the rights and interests of his widow and children in the Free Churches fund in terms of the recited Order but that only so long as he continues to hold the charge held by him at the appointed date; or
- (c) a minister of a non-participating congregation who has not elected in terms of section 15 of the recited Order to obtain the benefits of the Free Churches fund for his widow and children and who has not been translated to a charge in respect of which payments have been made for him in terms of the recited Order but that only so long as he continues to hold the charge held by him at the appointed date.

Non-participating congregations.

13. This section shall apply to every non-participating congregation until such congregation shall cease to be a non-participating congregation by making such regular contributions to the maintenance of the ministry fund as will entitle the minister of such congregation to full participation therein :—

- (1) The kirk session deacons' court managers or other ruling body of every non-participating

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congregation shall when called upon by the Trustees by a notice addressed to the treasurer of the congregation deliver to the Trustees a certified extract of a minute by such body undertaking in a form to be prescribed by the Trustees to make payment to the Fund of all sums payable thereto in terms of this Order in so far as not met by the maintenance of the ministry fund : A.D. 1930.

- (2) It shall be in the power of any non-participating congregation which has not elected to obtain the benefits of the Free Churches fund or having elected to obtain these benefits has subsequently forfeited right thereto and of any congregation of the Scottish Synod in England to make intimation to the treasurer within twelve months after the death translation resignation or deprivation of the minister who at the appointed date was minister of such congregation or within twelve months after the appointment of a colleague to such minister that such congregation does not desire the benefits of the Fund and the widows and children of the ministers of such congregation shall thereupon subject to the terms of the section of this Order of which the marginal note is "Individual payments in certain cases" be excluded from the Fund and no payments shall be made from the maintenance of the ministry fund in respect of such congregation :
- (3) In the event of the kirk session deacons' court managers or other ruling body of any non-participating congregation failing or refusing to deliver an undertaking as above provided within six months after being called upon by the Trustees to do so by a notice addressed to the treasurer of the congregation or after delivery of such undertaking failing to make payment of any sum payable under such undertaking within twelve months after being called upon by the Trustees to make payment thereof by a notice addressed to the treasurer of the congregation the charge represented by such

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congregation shall ipso facto and without any resolution of the Trustees or proceedings to that effect forfeit and lose all right and interest in the Fund to the effect that no minister inducted to such charge in all time coming shall subject to the terms of the section of this Order of which the marginal note is "Individual payments in certain cases" be entitled to obtain the benefits of the Fund for his widow and children reserving always to the minister of such charge at the time of failure or refusal as aforesaid and to successive ministers thereof entitled to the benefits of the Fund before their induction to such charge right in terms of the section of this Order of which the marginal note is "Continuance of rights of ministers ceasing to have a share in certain funds" to continue the right and interest of their widows and children to participate in the benefits of the Fund by making payment of the annual and other sums payable under this Order and reserving also to the Trustees the power to readmit such congregation to the benefits of the Fund on such terms as to the Trustees shall seem proper :

- (4) In the event of it being found that in connection with any non-participating congregation circumstances have arisen whether before or after the commencement of this Order which are not provided for by this Order it shall be in the power of the Trustees to decide whether such non-participating congregation may be admitted to the benefits of the Fund for the widows and children of its ministers in the same manner as is hereby provided with regard to other non-participating congregations or to allow the minister of such congregation the right to obtain the benefits of the Fund for his widow and children under and in terms of the section of this Order of which the marginal note is "Individual payments in certain cases" and any minister of such congregation who may be admitted to the benefits of the Fund in accordance with the power hereby conferred on the

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Trustees shall always be entitled to continue to uphold the right and interest of his widow and children in the Fund under and in terms of the section of this Order of which the marginal note is "Continuance of rights of ministers ceasing to have a share in certain funds."

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14.—(1) This section shall apply to—

- (a) any missionary duly appointed by the churches who shall not have been admitted to any share of the funds under the charge of the mission committees;
- (b) any minister or missionary (not being a contributor) to whom paragraph (a) or (b) of subsection (5) of the section of this Order of which the marginal note is "Annual payments to the Fund" applies;
- (c) any minister holding at the appointed date a charge as minister of a non-participating congregation which did not elect to contribute to the Free Churches fund; and
- (d) any minister excluded from the benefits of the Fund under subsection (2) of the immediately preceding section of this Order.

Individual
payments
in certain
cases.

(2) Any missionary or minister to whom this section applies shall be entitled to obtain the benefits of the Fund for his widow and children by making intimation to the treasurer within twelve months from the date of his first appointment to such missionary charge or first induction to such congregation or within fifteen months from the appointed date whichever shall last happen and by payment of the several annual payments and payments in respect of entry money and marriage tax hereinbefore provided and also of an extra annual payment to be fixed by the Trustees whereof payment shall be made as at the first term of Whitsunday after the date of such appointment or induction and annually thereafter at the term of Whitsunday until by change of circumstances payments fall to be made for him under the section of this Order of which the marginal note is "Annual payments to the Fund" with interest on all payments from the due date of payment until payment all to the same effect as if the said extra annual payment had been made

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A.D. 1930. — out of the funds under the charge of the mission committees maintenance of the ministry fund or sustentation fund or funds of a non-participating congregation in terms hereof.

(3) The Trustees shall in fixing the amount of any such extra annual payment take into account the circumstances of each case including the state of health of the missionary or minister according to a medical report to be supplied by him at his own expense in a form to be prescribed by the Trustees.

(4) If any missionary or minister to whom this section applies shall fail from whatever cause at two successive terms of payment to make payment to the Fund of any annual payment in this section mentioned or shall fail to make payment of entry money or marriage tax within eighteen months after the same or the instalments thereof fall due or shall fail in any other respect to comply with the provisions of this Order his widow and children shall ipso facto forfeit and lose all right and interest in the Fund and shall not be entitled to any benefit therefrom whatsoever.

Commuta-
tion of
payments.

15. The Trustees may if they think fit empower any minister professor or missionary entitled under this Order to obtain the benefits of the Fund for his widow and children to commute the ordinary annual payments in this Order provided by the payment of a single sum or by annual payments to cease on his attaining a specified age according to tables which may from time to time be framed by the Trustees on the advice of an actuary but no commutation shall affect the claims for (a) entry money (b) marriage tax (c) extra payments under the immediately preceding section of this Order or under section 15 of the recited Order (d) extra climatic rates or (e) payments in terms of the section of this Order of which the marginal note is "Payments to the Fund in respect of vacant charges."

Medical
examina-
tion of
mission-
aries.

16. Every person appointed for service as a missionary in any area for which extra climatic rates are required under this Order shall undergo medical examination and a certificate of his fitness for service beyond the United Kingdom shall be submitted to the Trustees by the mission committees and unless such certificate

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shall be accepted by the Trustees he shall not be entitled to obtain the benefits of the Fund for his widow and children so long as he holds the charge to which he has been so appointed and no payments shall be made to the Fund in respect of the charge held by him while so held and the charge if and while held by such missionary shall not be deemed to be a vacant charge.

A.D. 1930.

17. In the event of any minister professor or missionary—

Continuance
of rights of
ministers
ceasing to
have a
share in
certain
funds.

- (a) ceasing after the appointed date from whatever cause (i) to have any share of the maintenance of the ministry fund sustentation fund the funds of the mission committees or college funds or (ii) to be a minister of a non-participating congregation; or
- (b) becoming a minister of a non-participating congregation which has been excluded or has forfeited right to benefit under the section of this Order of which the marginal note is "Non-participating congregations"; or
- (c) being a minister holding a charge as minister of a non-participating congregation which while he holds such charge shall incur forfeiture under subsection (3) of the last-mentioned section; or
- (d) in any way ceasing to be a minister or missionary of either of the churches; or
- (e) ceasing to hold an office;

it shall nevertheless be in the power of such minister professor or missionary to uphold and continue the right and interest of his widow and children to participate in the benefits of the Fund by contributing and making payment to the treasurer of the Fund of the annual and other sums which would otherwise have been payable to the Fund in terms of this Order for or in respect of such minister professor or missionary out of the maintenance of the ministry fund the sustentation fund the funds of the mission committees the college funds or the funds or moneys belonging to a non-participating congregation or by such professor as the case may be and that regularly at the terms at which the said sums shall become due during his lifetime with interest from the respective dates of payment until paid and by complying fully with the other provisions of this Order

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A.D. 1930. — Provided always that if such minister professor or missionary (not being a contributor) shall fail from whatever cause at two successive terms of payment to make payment to the Fund of such annual contributions or shall fail to make payment of entry money or marriage tax within eighteen months after the same or the instalments thereof fall due or shall fail in any other respect to comply with the provisions of this Order his widow and children shall ipso facto forfeit and lose all right and interest in the Fund and shall not be entitled to any benefit therefrom whatsoever.

Discretion
to Trustees
in regard
to arrears.

18.—(1) Notwithstanding anything hereinbefore in this Order contained it shall be in the power of the Trustees according to their discretion on being satisfied that there are exceptional circumstances to allow any minister professor or missionary to uphold and continue the right and interest of his widow and children to participate in the benefits of the Fund by making payment to the treasurer of the annual payments entry money or marriage tax or any instalments thereof which may be in arrear with interest thereon as if no failure in payment had occurred.

(2) The Trustees shall have power to cancel any rates or other payments due to the Fund which they may consider to be irrecoverable.

Provision as
to parties
liable to
both funds.

19.—(1) In respect that certain ministers professors and missionaries have before the commencement of this Order become liable to payments in connection with the Church of Scotland fund and also in connection with the Free Churches fund such ministers professors and missionaries shall have it in their option to receive payment as at the appointed date of the surrender value of their rights under either (a) the recited Acts or (b) the recited Order whichever amount shall be less as such surrender value may be fixed by an actuary appointed by the Trustees provided that notice of the intention to exercise such option shall be made in writing to the clerk or to the treasurer within two years from the commencement of this Order and in the event of this option being exercised such payment shall be accepted by such ministers professors and missionaries and shall be in full satisfaction of and completely discharge the interest of such ministers

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professors and missionaries and their widows and children A.D. 1930.
in the rights surrendered. —

(2) The foregoing subsection shall not apply to a minister professor or missionary who under the recited Order is entitled to the benefits of the Free Churches fund for his widow and children and who was translated from a charge in the United Free Church of Scotland or the Free Church of Scotland to a benefice in the Church of Scotland between twelve o'clock noon on the twenty-second day of November one thousand nine hundred and twenty-eight and the appointed date and no such minister professor or missionary shall be liable to make any payment under the recited Acts or as a contributor nor shall the widow or children of any such minister professor or missionary be entitled to any benefit under the provisions of this Order relating to contributors.

20.—(1) After the commencement of this Order the Trustees.
direction and management of the affairs of the Fund and the execution of the purposes of this Order shall be vested in twenty trustees of whom twelve shall be ministers professors or elders of the Church of Scotland four shall be ministers professors or elders of the Free Church of Scotland and four shall be professors of one or more of the universities.

(2) The following shall be the first Trustees (namely):—

(a) The Very Rev. John Donaldson MacCallum D.D. Larkhall the Rev. James Taylor Cox D.D. Dyce the Rev. Arthur Stanley Middleton B.D. Dean Edinburgh William Galbraith writer to the signet Edinburgh the Rev. George Macaulay D.D. 24 Cluny Drive Edinburgh the Rev. James Weatherhead D.D. Dundee the Rev. John Spence Ewen B.D. B.Sc. Liberton Edinburgh Archibald Brown Campbell writer to the signet Edinburgh Steuart Bayley Hog Esq. of Newliston Kirkliston West Lothian John Parker Watson writer to the signet Edinburgh Hamilton Maxwell writer to the signet Edinburgh and John Thomas Sherriff Watson chartered accountant Edinburgh representing the Church of Scotland;

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(b) Walter Rounsfell Brown procurator 6 Grange Terrace Edinburgh the Reverend Donald Maclean D.D. Professor of Church History and Church Principles Free Church College Edinburgh the Rev. Alexander Stewart D.D. 5 Forbes Road Edinburgh and Donald MacCallum Smith writer to the signet 9 Ventnor Terrace Edinburgh representing the Free Church of Scotland; and

(c) James Mackintosh K.C. B.A. LL.D. Professor of Civil Law in the University of Edinburgh Ernest Maclagan Wedderburn LL.B. D.Sc. writer to the signet Professor of Conveyancing in the University of Edinburgh Robert Candlish Henderson K.C. LL.B. Professor of Scots Law in the University of Edinburgh and John Girvan LL.B. Professor of Conveyancing in the University of Glasgow representing the universities.

(3) The said first Trustees and their successors in the office of Trustees as coming in place of and in substitution for the Trustees appointed by and acting under the recited Acts and the recited Order shall in virtue of the provisions of this Order be a body corporate by the name and style of the Churches and Universities (Scotland) Widows' and Orphans' Fund and shall by that name have perpetual succession and a common seal with power to change alter and make new the same as shall by them be judged expedient and they and their successors in the office of Trustees may by that name sue and be sued in any actions suits or other proceedings at law or in equity and hold receive enjoy and possess for the uses and purposes specified in this Order the whole property and estate heritable and moveable real and personal stocks funds moneys and securities by this Order vested in them or hereafter to be paid acquired and invested under or in virtue of this Order.

(4) The first Trustees shall be ranked in seniority according to the order in which they are named in this Order as ministers or elders of the respective churches or as professors of the universities and after the persons so named shall all have retired in rotation as hereinafter provided the Trustees shall be ranked in seniority

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according to the order in which they appear in the list of Trustees in their respective representative capacities as aforesaid and the Trustees shall remain in office as Trustees until they shall be replaced by other Trustees appointed to succeed them in manner hereinafter mentioned. A.D. 1930.
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21.—(1) On the thirtieth day of May one thousand nine hundred and thirty-three subject as hereinafter in this section provided the three senior Trustees ministers professors or elders of the Church of Scotland the senior Trustee a minister professor or elder of the Free Church of Scotland and the senior Trustee a professor of one of the universities shall go out of office and three Trustees being ministers professors or elders of the Church of Scotland shall be appointed by the general assembly of the Church of Scotland at the meeting of the general assembly in May one thousand nine hundred and thirty-three or at such other time as may be fixed for the meeting in that year and one Trustee a minister professor or elder of the Free Church of Scotland shall be appointed by the general assembly of the Free Church of Scotland at the meeting of the general assembly of that church in May one thousand nine hundred and thirty-three or at such other time as may be fixed for the meeting in that year and one Trustee a professor of one of the universities shall be appointed by the University Court of the University of Edinburgh not later than the thirtieth day of May one thousand nine hundred and thirty-three in place of those so retiring and the names of the persons so appointed as Trustees shall be placed at the bottom of the list of Trustees according to their respective representative capacities and on the thirtieth day of May in every year thereafter the three senior Trustees ministers professors or elders of the Church of Scotland the senior Trustee a minister professor or elder of the Free Church of Scotland and the senior Trustee a professor of one of the universities shall go out of office and three Trustees ministers professors or elders of the Church of Scotland one Trustee a minister a professor or elder of the Free Church of Scotland and one Trustee a professor of one of the universities shall be appointed in manner foresaid in their place and the names of the Trustees so appointed shall be placed at the bottom of the list of Trustees in manner before-mentioned. Rotation of
Trustees.

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(2) Any Trustee who goes out of office shall be eligible for reappointment.

Chairman.

22.—(1) At the first meeting of the Trustees held after the commencement of this Order which shall be called by the clerk the Trustees shall appoint one of their number chairman of the Trustees to hold office until the first meeting of the Trustees after the meetings of the general assemblies in the year one thousand nine hundred and thirty-three and at the said last-mentioned meeting of the Trustees the Trustees shall appoint one of their number chairman of the Trustees to hold office until the first meeting of the Trustees after the meetings of the general assemblies in the year one thousand nine hundred and thirty-four and so forth in every year thereafter.

(2) In the event of the death incapacity or retirement of the chairman during the period of his office as chairman the Trustees shall elect another of their number as chairman for the remainder of the said period.

Vacancies
in office of
Trustee.

23.—(1) In case any vacancy shall happen in the office of Trustee otherwise than by effluxion of time a Trustee being a minister professor or elder of the church of which the Trustee whose office has become vacant was a minister professor or elder or a professor of one of the universities if the Trustee whose office has become vacant was a professor shall be appointed by the Trustees and his name shall be placed at the bottom of the list according to his representative capacity and each Trustee so appointed shall hold office until the thirtieth day of May following or in the event of a vacancy occurring before the thirtieth day of May in the year one thousand nine hundred and thirty-three then until the thirtieth day of May in that year when the general assembly of the church of which such Trustee is a minister professor or elder or in the case of a professor of one of the universities the University Court of the University of Edinburgh shall either confirm the appointment or appoint some other person to be Trustee in addition to the Trustees or Trustee appointed to take the place of those retiring by rotation.

(2) The constitution of the Trustees shall not be impaired and no resolution deed or action of the Trustees

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shall be subject to challenge in respect only of any A.D. 1930.
vacancy in the personnel of the Trustees or of any delay
failure or irregularity in the manner of filling such
vacancy. —

24.—(1) The Trustees shall hold at least two Meetings of
ordinary meetings in the year on dates to be fixed by Trustees.
the Trustees and other meetings may be called as and
when required Any four Trustees by a request in writing
addressed to the clerk or treasurer shall be entitled to
require a meeting of Trustees to be called.

(2) Notice of every meeting which shall specify the
general nature of the business shall be sent by post to
each Trustee by the clerk or treasurer not less than
seven days before the day of the meeting.

(3) Questions at any meeting shall be determined
by a majority of votes of the Trustees present and in
case of an equal division of votes the chairman shall
in addition to his deliberative vote have a casting vote.

(4) Any meeting may be adjourned from time to
time but no business shall be transacted at any adjourned
meeting other than the business left unfinished at the
meeting from which such adjournment took place.

(5) At all meetings the chairman or in his absence
any Trustee elected by the meeting shall preside and
five of the Trustees for the time being shall form a
quorum and if a quorum be not present the Trustees
present shall have power to adjourn the meeting.

(6) It shall be lawful for the Trustees to appoint
one or more committees consisting of such of their
number as they shall think fit.

(7) A committee may elect a chairman of their
meetings If no such chairman be elected or if he be
not present at the time appointed for holding the same
the members present may choose one of their number
to be chairman of such meeting A committee may
meet and adjourn as they think proper.

(8) Minutes shall be made in books to be kept for
the purpose of all proceedings and resolutions of all
meetings and such minutes if signed by the chairman
of the meeting or by the chairman of the next meeting

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A.D. 1930. shall be evidence of the facts therein stated without
— further proof.

(9) The Trustees shall provide for the safe custody of the seal and it shall not be used except by the authority of the Trustees and only for the sealing of deeds and such writings of a formal nature as the Trustees resolve should be sealed. Such authority shall be recorded in a book kept for the purpose and authenticated by the Trustees who sign the document so sealed.

Appoint-
ment of
treasurer
&c.

25.—(1) The Trustees shall appoint a treasurer an auditor and an actuary who shall be removable at the pleasure of the Trustees and who shall receive such annual or other allowance for their services as shall be fixed by the Trustees from time to time.

(2) Any treasurer shall find security from an insurance or guarantee company for his intromissions to the satisfaction of the Trustees in a sum not less than five thousand pounds or in the case of joint treasurers or assistant treasurers in a sum of not less than three thousand pounds each and the premiums of the guarantee bonds shall be paid out of the income of the Fund.

(3) Subject to the provisions of this section Charles Edward Walker Macpherson chartered accountant the collector of the Church of Scotland fund and William Adrian Alexander Balfour chartered accountant treasurer of the Free Churches fund shall be the first joint treasurers and subject to the instructions of the Trustees shall arrange for the division of the work of the treasurers' staff.

(4) The Trustees shall have power to provide out of the Fund retiring allowances to officials or members of the staff of the Fund or if special circumstances should arise compensation for loss of office by any official.

Duties of
treasurer.

26. The treasurer shall attend all meetings of the Trustees which may be held and generally it shall be his duty and he shall have power to receive and discharge the whole income of the Fund and to negotiate and transact under the direction of the Trustees all the ordinary business relating thereto.

Accounts.

27.—(1) The treasurer shall keep regular books open to the inspection of the Trustees and in such form

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as they shall prescribe containing a full account of his intromissions and a correct record of the statistics of and relating to the Fund and he shall make up accounts of his intromissions annually as at the thirty-first day of December with a list of the arrears if any due to the Fund at that date. A.D. 1930.
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(2) The said accounts shall be audited by the auditor to be appointed under this Order and laid before the Trustees at their first ordinary meeting after completion of the accounts and not later than the twelfth day of May in each year.

(3) The Trustees are hereby empowered to pass the accounts and to acquit and discharge the treasurer and his sureties from time to time of the sums so accounted for.

(4) The treasurer shall also make up annually and lay before the Trustees at the same time full lists or schedules showing the particulars of such changes as may have taken place in the statistics relating to the ministers professors and missionaries and their widows and families through admissions marriages or otherwise as at the preceding fifteenth day of May.

28. In order to enable the treasurer to keep a full and correct record of the statistics of the Fund— Returns to be made to treasurer.

- (a) (i) It shall be incumbent on each person holding the office of clerk to any presbytery of either of the churches and the secretary of the university court of each of the universities to report to the treasurer if required by the Trustees and in such form as shall from time to time be prescribed by the Trustees such changes as may occur within the bounds of the presbytery of which he is clerk or in the university of which he is such secretary with respect to the induction appointment translation resignation deprivation or death of any minister or professor and any additional particulars required for the information of the Trustees and the secretaries or treasurers of the mission committees shall respectively make similar returns in respect of missionaries;

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- (ii) The said reports and returns shall be made half-yearly not later than the first day of May and the first day of November respectively bringing down the report of such changes at least to the first day of April and the first day of October immediately preceding;
- (b) (i) Every minister professor or missionary shall within two months after his induction admission or appointment to a charge or office or within one month after receiving a requisition from the treasurer make a return to the treasurer in such form as from time to time shall be prescribed by the trustees accompanied by such certificates as shall be required by the Trustees stating the following particulars in so far as they apply to his case namely the date of his ordination and induction or appointment the date of his birth if married the name of his wife and the date of her birth the date of his marriage the name and date of the birth of each child alive the name and dates of the birth and death of each child deceased and any other particulars required;
- (ii) Every minister professor or missionary shall in the month of August in each year make a return to the treasurer in such form as shall from time to time be prescribed by the Trustees also accompanied by such certificates as shall be required by the Trustees of the particulars of such changes as shall have occurred in the state of his family during the year preceding the first day of August annually or certify that no such change has taken place.

Penalty for failure to make returns.

29. In the event of a minister professor or missionary failing to make any return required by the immediately preceding section of this Order his right to any share that would have been payable to him at the next time of payment from the maintenance of the ministry fund sustentation fund funds of the mission committees or college funds respectively shall ipso facto be suspended and the treasurer shall on or before the fifteenth day of October in each year furnish a list of any ministers professors or missionaries who shall have failed to make such returns to the treasurer of the maintenance of the ministry

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fund sustentation fund or college funds or the secretaries A.D. 1930.
or treasurers of the mission committees respectively —
who thereupon shall withhold payment of the share
which would otherwise have been due to such parties
respectively until it shall be intimated to him by
the treasurer that the requisite returns have been made.

30. It shall be in the power of the Trustees at any Power to
time if they shall see fit to alter the date of retiral of the alter dates.
Trustees in each year the date at which the annual
accounts shall be made up in each year the dates of their
ordinary meetings the date at which statistics are to be
made up the dates of returns to be made to the treasurer
and any other dates depending on such alterations
Provided always that the accounts are made up annually
and statistics prepared and returns made annually.

31. The treasurer may appoint one or more deputies Power to
for whom he shall be answerable to assist him in the appoint
collection of rates or other sums payable to the Fund deputy
and such reasonable expenses as may be so incurred treasurer.
shall be paid out of the Fund and he shall also be provided
with an office and shall be empowered to have an assistant
or assistants whose salary or salaries shall be paid out
of the Fund at such rate as the Trustees may determine
and the Trustees shall also pay out of the Fund such
further clerking and other allowances as may be found
necessary.

32.—(1) The Trustees shall have power to appoint Trustees to
a clerk or joint clerks who shall be removable at the appoint
pleasure of the Trustees and who shall receive such clerk &c.
annual or other allowance for their services as shall
be fixed by the Trustees from time to time.

(2) Subject to the provisions of this section the
first clerk shall be Frederick Patterson Milligan writer
to the signet the present clerk of the Church of Scotland
fund.

(3) It shall be lawful for the Trustees to unite the
offices of treasurer and clerk to the effect that these
offices shall be held and the duties discharged by one
and the same person.

33.—(1) The Trustees shall have power to appoint Law agents.
a law agent or joint law agents.

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(2) The first law agents shall be Frederick Patterson Milligan writer to the signet and Alexander Patrick Melville writer to the signet the present law agents of the Church of Scotland fund and the Free Churches fund respectively.

Moneys to
be deposited
in bank.

34. The Trustees shall from time to time name a bank or banks in Edinburgh in which the moneys payable to and received on account of the Fund shall be deposited.

Bank
accounts.

35. The Trustees may if they think proper authorise separate bank accounts to be opened into which the moneys mentioned in the preceding section may be paid and such bank accounts shall be operated on in such manner as may be directed by the Trustees.

Property
vested in
Trustees
and legacies.

36.—(1) The whole property and assets of the Church of Scotland fund and the whole property and assets of the Free Churches fund and all sums including donations or bequests due under or to the said funds or either of them and outstanding at the commencement of this Order and all arrears due and payable to the said funds under and in virtue of the recited Acts and the recited Order and also the whole annual and other sums payable to the Fund under and in virtue of this Order and all donations and bequests for the general purposes of the Fund or relating thereto together with the interest and dividends and every profit and increase that may in any manner of way from time to time accrue thereon shall be and the same are hereby vested in the Trustees in trust for the uses and purposes specified in this Order or in the case of donations and bequests for the special uses or purposes for which such donations or bequests shall have been or shall be given or bequeathed subject to the terms of the sections of this Order of which the marginal notes are respectively “Mrs. Mackay’s fund” and “Dr. Grant’s fund” and that without the necessity of any disposition assignation transfer conveyance notarial instrument notice of title or other instrument and the same shall not be affectable by the debts or deeds of ministers professors or missionaries now or hereafter holding or who have ceased or shall cease to hold charges or offices or of ministers professors and missionaries whose widows and children

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are in any way entitled to the benefits of the Fund A.D. 1930.
or be attachable by arrestment or other legal diligence
at the instance of their creditors or of any other person
or persons whomsoever. —

(2) No legacy or bequest in any will or testamentary writing whether bearing date before or after the commencement of this Order shall lapse or fail by reason of the provisions of this Order but any such legacy or bequest which but for this Order would have accrued for the benefit either of the Church of Scotland fund or of the Free Churches fund shall be payable to and receivable by the Trustees.

37. Without prejudice to anything in this Order Title of
hereinbefore contained it is hereby provided that for Trustees.
the purpose of enabling the Trustees to complete a
title if thought fit to any part of any heritable property
vested in them by virtue of this Order by expeding a
notarial instrument or notice of title or otherwise this
Order shall be deemed to be and may be used as a
general disposition or assignation as the case may be
of such heritable property in favour of the Trustees.

38.—(1) The Trustees shall lay out and invest the Powers of
moneys of the Fund or so much thereof as is not required investment.
for payment of the annuities and charges after specified
in or on any of the securities specified in the Trusts
(Scotland) Act 1921 or available to Trustees by any
subsequent legislation or on any of the securities under-
mentioned (viz.) :—

(i) In the purchase of—

First Government securities of any dominion
colony or dependency of Great Britain;

Secondly Stock of any bank in Scotland incor-
porated by royal charter or by or under
the provisions of any Act of Parliament;

Thirdly Mortgages bonds debentures debenture
stock or other securities of any county or
municipal or other local authority having
power to levy rates or assessments in Great
Britain or Northern Ireland or in any
dominion colony or dependency of Great
Britain and secured upon such rates or
assessments;

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Fourthly Mortgages bonds debentures debenture stock guaranteed or preference stock lien stock or guaranteed or preference shares of any public company in Great Britain or Northern Ireland or in any dominion colony or dependency of Great Britain which for five successive years immediately preceding shall have paid dividends on its ordinary stock or share capital;

Fifthly Stock or shares of any company having a fixed rate of dividend or interest guaranteed by the British Government or by the Government of British India or by the Secretary of State for India or by the government or legislature of any dominion of Great Britain or of any of the provinces of such dominion or by the government or legislature of any colony or dependency of Great Britain;

Sixthly Ground rents head rents chief rents rent charges or any kind of rents or income arising or payable out of or charged on lands in Great Britain:

(ii) In loans on the security of—

First Any of the subject matters of investment of which the purchase is authorised by this Order;

Secondly Rates tolls or assessments leviable under any Act of the British Parliament;

Thirdly Debentures or deposit receipts of any company or bank constituted by charter from the Crown or the Government of India or incorporated by special Act of Parliament and having its head office in Great Britain or India.

(2) It shall be lawful for the Trustees at any time to call up and realise the sums already forming the assets of the fund or to be lent out and invested under the authority of this Order and to sell stocks or securities purchased and to reinvest in like manner from time to time the sums so called up and realised or the proceeds

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of the stocks or securities so sold or such part thereof A.D. 1930.
as may not be required for the purposes aforesaid. —

39. All receipts discharges dispositions assignations Execution
or other necessary deeds and instruments granted in of deeds
name of the Fund and signed by any two of the Trustees &c.
and by either the treasurer or the clerk (or in the case
of joint treasurers or joint clerks by any one of them)
for the time being and sealed with the common seal
shall be sufficient and effectual to and shall fully exonerate
the persons to whom or in whose favour the same shall
be granted.

40. In any suit action or diligence for recovery of Evidence
the annual or other sums due and payable to the Fund of arrears
a statement of the arrears and the interest due thereon &c. due to
certified by the treasurer shall be sufficient evidence the Fund.
that the sums therein contained are justly due and
payable unless such statement shall be proved by written
evidence to be erroneous.

41. The Trustees shall prepare and through the Reports to
chairman or failing the chairman through any one of the general
Trustees or through their treasurer or clerk lay before the assemblies.
respective general assemblies of the churches at their
annual meetings and also annually before the university
court of each of the universities a report on the state and
progress of the Fund showing generally how the moneys
are invested The said report along with such lists or
abstracts as may be necessary to explain the same shall
at the same time be printed for circulation and copies
thereof shall be furnished by the treasurer free of any
charge to ministers professors and missionaries applying
to the treasurer for the same.

42. The affairs of the Fund shall be investigated Periodical
periodically by an actuary to be appointed by the Trustees investiga-
for the purpose of ascertaining whether the sums accu- tions.
mulated at the time with the value of the expected future
payments be sufficient or more or less than sufficient for
the payment of the annuities and children's provisions
charged upon the Fund and such as may be expected to
become chargeable thereon at the amounts hereinafter
specified or at such other amounts as may have been

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A.D. 1930. fixed under the provisions of this Order together with the necessary expenses of management.

Periods of investigation. 43. The first investigation shall be made as at the fifteenth day of May in the year one thousand nine hundred and thirty-five and every succeeding investigation shall be made as at the fifteenth day of May not sooner than five nor later than ten years from the date of the immediately preceding investigation unless circumstances shall arise which in the opinion of the Trustees render it desirable to make an earlier investigation in which case they shall have power to direct an investigation to be made within an earlier period than five years.

Immunity of Trustees. 44. The Trustees shall not be liable for omissions or for acts done by them bona fide in the execution of their duties under this Order or for the solvency of the persons to whom moneys shall be lent out or of the banks in which moneys shall be deposited or for the sufficiency of securities and investments or in solidum but each only for his own actual intromissions and the Trustees shall be paid, and indemnified out of the Fund for all necessary expenses including travelling expenses to which they may be put in the execution of their office.

Power to make byelaws. 45. It shall be lawful for the Trustees from time to time to make such byelaws and regulations as may be found expedient for the discharge of the duties hereby committed to them and for managing and administering the Fund Provided always that such byelaws and regulations shall not be repugnant to the law of Scotland or to the true intent and meaning of this Order and that all such byelaws and regulations shall be approved by three-fourths of the Trustees present at a meeting called for the purpose.

Rate of interest. 46. In every case where interest is made payable by this Order such interest shall be calculated and paid at the rate of five pounds per centum per annum.

Provisions to widows and children. 47.—(1) There shall be paid out of the Fund—
 In the first place the expenses incurred in the management and administration of the Fund;
 and

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In the second place the annuities and provisions A.D. 1930.
hereinafter set forth all ranking *pari passu*
videlicet :—

(a) The annuities to widows of contributors and benefits to children of contributors set forth in the schedules to this Order ;

(b) The annuity of twenty-seven pounds per annum to the widow of the Reverend Robert Scott of Bombay to which she is entitled under section twenty-two of the recited Order ;

(c) The annuities to widows and children entitled to the benefits of the Free Churches fund at the appointed date to which they are respectively entitled under the recited Order ;

(d) An annuity of sixty-four pounds per annum to each of the widows and of thirty-two pounds per annum to each of the children under eighteen years of age or in the event of the father having died without leaving a widow an annuity of forty-eight pounds per annum to each of the children under eighteen years of age of the following ministers professors and missionaries who may have died or shall die after the appointed date (*primo*) every minister professor or missionary who has prior to the appointed date ceased to have any share of the sustentation funds the funds of the mission committees or the college funds of the United Free Church of Scotland and the Free Church of Scotland (*secundo*) every minister professor or missionary (not being a contributor) now or hereafter holding a charge or office who has been or who shall in time coming be admitted to any share of the maintenance of the ministry fund the sustentation fund the funds of the mission committees or the college funds respectively and every such minister professor or missionary now or hereafter *emeritus* (*tertio*) every

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minister and minister emeritus (not being a contributor) of a non-participating congregation entitled to the benefits of the Fund for the widow and children of its minister (quarto) every minister (not being a contributor) appointed after the appointed date to a charge which was a charge of the Church of Scotland before union and who may die before standardisation of stipend takes place (quinto) every minister who has obtained the benefits of the Free Churches fund under section 15 of the recited Order and every minister professor or missionary (not being a contributor) who has obtained the benefits of the Fund for his widow and children in terms of the section of this Order of which the marginal note is "Individual payments in certain cases" and (sexto) every professor (not being a contributor) appointed to an office in the universities after the appointed date :

Provided always that no such minister professor or missionary shall have forfeited the right and interest of his widow and children and subject always to the provisions conditions and exceptions specified in the sections of this Order of which the marginal notes respectively are "Special payments by persons going abroad" "Individual payments in certain cases" "Medical examination of missionaries" and "Continuance of rights of ministers ceasing to have a share in certain funds."

(2) Annuities and benefits to widows and children of contributors under paragraph (a) of subsection (1) of this section shall be payable under the whole conditions applicable to them respectively set forth in the schedules to this Order.

(3) With respect to annuities under paragraphs (b) (c) and (d) of subsection (1) of this section the following provisions shall have effect (that is to say) :—

(i) the annuities shall be payable in equal portions half-yearly at the terms of Whitsunday and Martinmas the first half-yearly payment of the said annuities being due and payable as at the

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term of Whitsunday or Martinmas immediately following the date of the husband's or father's decease and the last term's payment of such annuity being in the case of a widow's annuity due and payable at the term of Whitsunday or Martinmas which shall immediately precede the death or remarriage of the widow or in the case of children's annuities at the term of Whitsunday or Martinmas which shall immediately precede the date at which each child shall attain the age of eighteen years complete or immediately preceding the date of each child's death before attaining that age;

- (ii) In the event of any widow or child dying on a term day or a child attaining the age of eighteen years on a term day the amount due on that day shall be paid to such widow's representatives or to the mother or other guardian of such child;
- (iii) In the event of the death of a minister professor or missionary on a term day the first half year's annuity or annuities shall be payable to the widow and children as at the day of his death;
- (iv) If any widow shall marry she shall thereby lose all right to any annuity from the Fund after the term of Whitsunday or Martinmas immediately preceding her remarriage unless and until she shall again become entitled to an annuity as the widow of another minister professor or missionary;
- (v) A child shall be entitled to his annuity although the widow of his father shall enter into a second or any subsequent marriage;
- (vi) If the widow of a child's father shall die before a child attains the age of eighteen years complete then the annuity payable to the child shall be increased to forty-eight pounds commencing the payment of the increased annuity at the first term of Whitsunday or Martinmas after the death of the widow and continuing the payment thereof at the terms before-mentioned.

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(4) Whatever amount may be fixed from time to time under this Order as the amount of the annuity payable to a widow under paragraphs (c) or (d) of subsection (1) of this section the annuity payable to a child under either of those paragraphs during the lifetime of the widow of his father shall always be equal to fifty per cent. of that amount and the increased annuity payable to a child after the death of the widow of his father shall always be equal to seventy-five per cent. of that amount.

(5) The annuities shall be subject at all times to deduction of any arrears of annual payments and of entry money and marriage tax as far as unpaid with interest thereon provided that the non-payment thereof shall not have inferred forfeiture in terms of this Order.

Rule for
increase or
diminution.

48. In the event of increase in the annuities resulting from future actuarial valuations the capital sum to be utilised for such increase shall in the first place be divided into two portions proportionate respectively to the gross actuarial values at the date of the relative actuarial investigation of the annuities and other payments to widows and children which have arisen or which may arise in respect of (a) annuities and provisions to widows and children of contributors and (b) annuities to widows and children of all other ministers missionaries and professors entitled to the benefits of the Fund. In the event of the annuities being at any time diminished the estimated capital deficiency shall be divided in similar proportions. The portion applicable to the widows and children of contributors shall be dealt with as provided in the Fourth Schedule hereto and the portion applicable to the widows and children of other ministers missionaries and professors entitled to the benefits of the Fund shall be applied in increase or diminution of the annuities provided in paragraphs (c) and (d) of subsection (1) of the immediately preceding section of this Order :

Provided always that no augmentation shall be made on the provisions to children of contributors specified in paragraphs 1 and 2 of Part II of the Third Schedule hereto.

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49.—(1) The annuities payable under paragraphs (c) and (d) of subsection (1) of the section of this Order of which the marginal note is “Provisions to widows and children” shall be increased to an annuity of sixty-six pounds to each widow and thirty-three pounds to each child under eighteen years of age or in the event of the father having died without leaving a widow forty-nine pounds ten shillings to each such child beginning the first half-yearly payment of the said increased annuities at the term of Martinmas one thousand nine hundred and thirty.

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—
 First
 increase of
 annuities.

(2) The annuity to the widow of a contributor specified in Part I of the Third Schedule to this Order shall be increased to the sum of forty-four pounds ten shillings or fifty-four pounds five shillings or sixty-four pounds or seventy-three pounds fifteen shillings as the case may be beginning the first payment of the said increased annuity on the twenty-sixth day of May one thousand nine hundred and thirty-one.

(3) The annuities to children specified in paragraph 3 of Part II of the Third Schedule shall be increased by an amount equal to the increase on the respective amounts of the widows' annuities specified in Part I of the Third Schedule and the annuities to children specified in Part III of the Third Schedule shall be increased proportionately to the increase on the respective amounts of the widows' annuities beginning the first payment of the increased annuities on the twenty-sixth day of May one thousand nine hundred and thirty-one.

50. On receiving from the actuary a report of any periodical investigation hereinbefore provided for the Trustees shall forthwith cause the actuary's report to be printed and a copy thereof shall be sent by post to each of the Trustees with a circular calling a special meeting of the Trustees to be held at such place as the chairman may appoint on a day not less than two weeks and not more than four weeks after the date of such circular for the purpose of considering the said report and the Trustees present at such meeting or at any adjourned special meeting shall have power to increase or diminish the rates of annuity according to the recommendation of the actuary or to do otherwise as may appear to them most advisable in the circumstances.

Alteration
 of annuities.

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—
 Payment of
 altered
 annuities.

51. In the event of any alteration being made as hereinbefore provided on the amount of the annuities by this Order directed to be paid the altered annuities shall commence to be paid at the twenty-sixth day of May as regards annuities to widows and children of contributors or at the term of Whitsunday or Martinmas as regards the other annuities which shall first happen after the amount thereof shall have been so altered and shall continue payable until again altered after any subsequent investigation.

Annuities
 to be
 alimentary.

52. The annuities payable to widows and children in virtue of this Order are hereby declared to be alimentary provisions and the same shall not be affectable by their debts or deeds nor subject to arrestment or other legal diligence at the instance of their creditors but shall be paid only to the widows and the guardians tutors or curators of the children respectively entitled thereto and in case any such widow shall be under any legal or natural disability to discharge the same or in case any such child shall have no guardian tutor or curator it shall be competent for the Trustees to name any one or more persons as trustee or trustees to manage and apply the annuities in such manner as shall appear to such persons to be most for the benefit of such widow or child and the person or persons so appointed shall have power to receive and discharge such annuities and shall if and when required by the Trustees be bound to render to the treasurer annually an account of the application thereof until he or they are relieved of or superseded in the said trust which the Trustees shall have power to do at pleasure.

United
 Presby-
 terian
 Ministers'
 Friendly
 Society

53.—(1) It shall be in the power of the Trustees should they see fit to make arrangements on such terms and conditions as may be mutually agreed upon for taking over the property and assets of the society known as the United Presbyterian Ministers' Friendly Society and to take over the liabilities of that society.

(2) In the event of arrangements being made for taking over the property and assets of the said society it shall be competent for the Trustees on obtaining an actuarial report showing a surplus value of the assets of the said society over its liabilities to pay to the Church of Scotland a sum equivalent to such

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surplus value in consideration of the payment made to the Free Churches fund in terms of section 4 of the recited Order. A.D. 1930.
—

54. The annuities payable under this Order to the widows and children of ministers professors and missionaries shall subject to the terms of the section of this Order of which the marginal note is "Provision as to parties liable to both funds" in all cases represent and in no case be additional to the annuities payable to the said widows and children from the Church of Scotland fund and the Free Churches fund respectively. Annuities
not to be
cumulative.

55. All agreements contracts conveyances deeds and other instruments affecting the trustees of the Church of Scotland fund or of the Free Churches fund and existing at the commencement of this Order shall except as in this Order otherwise provided be binding on and of as full force and effect against or in favour of the Trustees and may be enforced as fully and effectually as if the Trustees had been parties thereto instead of the trustees of the Church of Scotland fund or the Free Churches fund. Contracts
binding on
Trustees.

56. All books and documents which would be evidence in respect of any matter for or against the trustees of the Church of Scotland fund or the trustees of the Free Churches fund and existing at the commencement of this Order shall be admitted in evidence in respect of the same and the like matter for or against the Trustees. Books &c.
to remain
evidence.

57. The full expenses that shall be incurred by the Trustees in recovering payment of any sum payable to the Fund under this Order from the debtor therein or out of his effects shall be recovered out of the assets of the debtor and if not so recovered shall be a charge against the Fund. Recovery of
expenses.

58. The rates annual payments entry money and marriage tax payable by contributors and by or on behalf of all other ministers professors and missionaries whose widows and children are entitled to the benefit of the Fund shall except so far as met from the maintenance of the ministry fund the funds of the mission committees or the funds of non-participating congregations together Rates &c.
to be
privileged
debts.

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A.D. 1930. with the interest thereof be privileged debts and preferable
— to all other debts except imperial taxes and local rates
of the said contributors and others not only upon their
benefices and salaries respectively but also upon their
whole other personal estate.

Payments 59. All payments made to the Fund in terms of
to be made this Order shall be sent to the treasurer free of bank
free of charges or any other expense.
expense.

Mrs. 60.—(1) The fund known as "Mrs Mackay's fund"
Mackay's which at the commencement of this Order was vested
fund. in the trustees of the Free Churches fund and is by
this Order vested in the Trustees shall be held by the
Trustees for the purposes specified in the deed of trust
dated eighth and tenth August one thousand eight
hundred and forty-six and registered in the books of
Council and Session on ninth December one thousand
eight hundred and fifty granted by the late Mrs Isabella
Gordon or Mackay and others but notwithstanding the
terms of the said deed of trust the annuities from the
said fund shall be paid to any child or children of a
deceased minister of either of the churches who may
be selected by the Trustees and who shall be otherwise
eligible to receive annuities under and in terms of the
said deed of trust.

(2) Order No. 699 (Mrs Isabella Gordon or Mackay's
fund) made by the commissioners under the Churches
(Scotland) Act 1905 is hereby repealed.

Dr. Grant's 61. The bequest known as "the Reverend James
fund. Grant's bequest" which at the commencement of this
Order was vested in the trustees of the Church of
Scotland Ministers' and Scottish University Professors'
Widows' Fund and is by this Order vested in the Trustees
shall be held by the Trustees for the purposes specified
in Dr Grant's trust disposition and settlement dated
twenty-seventh April one thousand eight hundred and
eighty-three and registered in the books of Council
and Session on first August one thousand eight hundred
and ninety but notwithstanding the terms of the said
bequest the income of the fund shall be given annually
as a gratuity either to a widow or family of a deceased
minister of either of the churches who may be selected.

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by the Trustees and who shall be otherwise eligible to receive the income under and in terms of the said bequest. A.D. 1930. —

62. The provisions of the schedules to this Order shall to the extent and effect set forth in this Order be held as being incorporated herein. Incorporation of schedules.

63. The respective trustees of the Church of Scotland fund and the Free Churches fund and their predecessors in office and the said Frederick Patterson Milligan and Charles Edward Walker Macpherson as clerk and collector respectively of the Church of Scotland fund and the said William Adrian Alexander Balfour as treasurer of the Free Churches fund and the heirs executors and representatives of any of them who have predeceased or may predecease the confirmation of this Order are hereby exonerated acquitted and simpliciter discharged of their whole actings transactions intrusions and management in any way and in whatever capacities in consequence of or arising out of their appointments to the foresaid offices or otherwise and of all omissions which can or could be laid to their charge and of all claims and demands whatsoever which may be made against the said funds or either of them or the respective trustees of the said funds. Discharge of officials.

64. The recited Acts the Free Church of Scotland Ministers' Widows and Orphans Fund Act 1851 the Free Church of Scotland Ministers' and Missionaries' Widows' and Orphans' Fund Act 1888 and the recited Order are hereby repealed provided that without prejudice to the provisions of section 38 of the Interpretation Act 1889 nothing in this repeal shall affect any right or privilege under the recited Order which is expressly referred to in this Order. Repeal.

65. The expenses incurred in obtaining this Order and incident thereto shall be paid out of the Fund. Expense of Order.

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A.D. 1930. The SCHEDULES referred to in the foregoing Order.

FIRST SCHEDULE.

Every contributor who during the period between twelve o'clock noon on the twenty-second day of November one thousand nine hundred and twenty-eight and the appointed date has been admitted to a benefice or office and has not made his selection of one or other of the yearly rates specified in the Second Schedule to this Order as the rate to which he chooses to be subject during his life by a writing signed by him addressed to the Trustees and delivered or forwarded to the treasurer on or before the twenty-sixth day of January one thousand nine hundred and thirty shall be adjudged to have made his selection of the annual rate of four pounds fourteen shillings and sixpence unless it be shown that the choice was delayed by exceptional circumstances in which case the Trustees may accept a delayed notification but not later than the thirty-first day of December one thousand nine hundred and thirty.

SECOND SCHEDULE.

1. Every contributor who at the appointed date was subject and liable to one of the annual rates following videlicet three pounds three shillings four pounds fourteen shillings and sixpence six pounds six shillings and seven pounds seventeen shillings and sixpence shall in the manner hereinafter directed continue to pay the same yearly at each term of Candlemas during his life notwithstanding that he may have ceased or shall hereafter cease to be a minister or professor by resignation deprivation or any other manner of way subject to the following exceptions :—

- (a) If any contributor resides permanently furth of Great Britain and Northern Ireland having resigned his benefice or office and gives a declaration to that effect it shall be in his option within three years from the twenty-second day of November of the year in which such residence has been constituted to intimate to the Trustees in writing his intention to cease to be a contributor in which event his name shall be removed from the

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list of contributors as at the date of the said declaration and any rights he or his dependants may have in the Fund shall thereupon cease and determine but no repayment shall be made to him of the rates paid by him and he shall make payment of any rates for which he became liable before the date of the said declaration; A.D. 1930.
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- (b) If any contributor resident furth of Great Britain and Northern Ireland at any time leave his rates unpaid for a period of three years prior to the twenty-second day of November one thousand nine hundred and twenty-nine or to the twenty-second day of November in any subsequent year his name shall be removed from the list of contributors as at the expiry of such period and any rights he or his dependants may have in the Fund shall thereupon cease and determine and no repayment shall be made to him of the rates paid by him;
- (c) If any contributor resident furth of Great Britain and Northern Ireland was at the commencement of this Order in arrear of payment of rates as at fourteenth October one thousand nine hundred and twenty-four and the arrears due by him were cancelled and his name removed from the list of contributors the annuity payable to the widow of such contributor if on the Fund at the commencement of this Order the payment of which had been suspended and applied towards liquidation of her husband's arrears of rates shall continue to be so suspended and applied so far as it may be required to clear the arrears with interest and if and when so cleared the annuity shall thereafter be payable to such widow.

2. Every contributor who has been admitted to a benefice or office prior to the appointed date shall at the first term of Candlemas after he has notified his selection or been adjudged to have made his selection as aforesaid make payment of the rate to which he shall then be subjected that is to say if at the said term of Candlemas he shall have enjoyed and had right to his benefice or office for one half year or less than one half year prior to and including the preceding twenty-second day of November (the said half year being reckoned from and including the fifteenth day of May preceding) he shall be liable to the payment of one half of his yearly rate if he was entitled to his benefice or office for one whole year or less than one whole year (but more than one half year as above reckoned) prior to and including the preceding twenty-second day of November he shall be liable to the payment of one year's rate and every contributor shall after the said term of Candlemas make payment of a full year's rate at each succeeding term of Candlemas during his life notwithstanding that he

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A.D. 1930: shall cease to be a minister or a professor by resignation deprivation or any other manner of way subject to the exceptions in regard to contributors who may reside furth of Great Britain and Northern Ireland contained in section 1 subsections (a) and (b) of this schedule all which rates shall be paid in the manner hereinafter directed :

Provided that if a contributor dies between twenty-second November and thirteenth February the annual rate which would have been payable at the term of Candlemas shall not be exigible but any previous arrears of rates shall be exigible along with the whole other payments specified in this schedule which are either in part or in whole unpaid at the date of death.

3. Every contributor who prior to the commencement of this Order has married but has not yet paid the marriage tax under the recited Acts and every contributor who shall hereafter marry shall in respect of his marriage be subject and liable to a sum equal to his annual rate and to the like sum for each succeeding marriage which sum shall be paid over and above his annual rate at the first term of Candlemas which shall happen after his marriage or admission to the said benefice or office if his marriage or admission takes place on or before the twenty-second day of November preceding the said first term of Candlemas and if the said marriage or admission takes place after the said twenty-second day of November shall be paid at the term of Candlemas happening a year after the said first term of Candlemas.

4. Every contributor who has not already made the payments after-mentioned and who has prior to the appointed date been admitted for the first time to a benefice or office and at the date of his admission was forty years of age or upwards—

(a) If married or if a widower having a child or children under eighteen years of age shall be liable in payment once only of a sum equal to two and one half times the annual rate to which he is subject over and above the annual and other rates hereinbefore directed to be paid by contributors which payment shall be made at the first term of Candlemas that shall happen after he has or might have made his selection of one or other of the aforesaid annual rates in the manner directed in the First Schedule to this Order;

(b) If a bachelor or a widower having no children shall not be liable to the aforesaid additional tax while he remains unmarried but in case of his marrying shall pay the said additional tax over and above the annual and other rates hereinbefore directed to be paid by contributors which payment shall be made at the first term of Candlemas

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that shall happen after his marriage if his marriage or admission takes place on or before the twenty-second day of November preceding the said first term of Candlemas and if his marriage or admission takes place after the said twenty-second day of November then at the term of Candlemas happening a year after the said first term of Candlemas. A.D. 1930.

5. Every contributor who has prior to the appointed date for the first time been admitted to a benefice or office shall be subject to pay to the Fund the sum of ten pounds by way of contribution which sum of ten pounds shall be payable by two equal instalments along with the first two payments of his annual rate or one half thereof and shall be leviable in the same manner as such rates are leviable.

6. When any contributor who is a minister is also a professor or has resigned his benefice to become a professor or has resigned his office to become a minister such contributor shall not be liable to double annual rates but shall continue to be liable for only the annual rate to which he is already subject.

7. The rates due by every contributor shall be paid to the treasurer at the office of the Fund in Edinburgh within eleven days after the respective terms of Candlemas hereinbefore in this schedule set forth and in default of such payment being made within the said time the contributors liable in payment of the same shall thereafter be subject to interest on such sums until paid.

THIRD SCHEDULE.

PART I.

ANNUITIES TO WIDOWS OF CONTRIBUTORS.

1. The annuities of forty-three pounds fifty-two pounds sixty-one pounds and seventy pounds payable to the widows upon the Church of Scotland fund at the commencement of this Order to which they were then respectively entitled shall continue to be paid to them on the twenty-sixth day of May yearly until their death or remarriage subject to alteration as provided in this Order.

2. (a) An annuity of the amount payable by the Church of Scotland fund at the appointed date and subject to alteration as provided in this Order shall be paid to the widow of every contributor who shall die after the appointed date and who has been subject to one or other of the rates hereinbefore mentioned (excepting in the case of the widow of a contributor who ceases to be a contributor under the exceptions in regard to contributors resident furth of Great Britain and Northern Ireland contained

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A.D. 1930. in paragraph 1 sub-paragraphs (a) (b) and (c) of the Second
Schedule to this Order).

(b) The said annuity in the case of a widow who at the appointed date has become a widow but has not at that time been entitled to receive her first annuity or in the case of a widow who shall hereafter become entitled to an annuity from the Fund shall be computed to run from the date of the husband's death to the twenty-sixth day of May following and the relative proportion of the annuity shall be payable on the said twenty-sixth day of May or on such subsequent date as may be convenient and the said annuity shall so continue payable on the said twenty-sixth day of May yearly during the widow's life so long as she remains the widow of a contributor.

3. Upon the death or remarriage of any widow who was on the twenty-second day of November one thousand nine hundred and twenty-three entitled to an annuity from the Church of Scotland fund or who shall thereafter become entitled to an annuity from that fund or who after the commencement of this Order would have become entitled to an annuity from that fund had it continued as a separate fund her annuity shall cease and determine upon the twenty-sixth day of May or the twenty-second day of November immediately preceding her death or remarriage.

4. If a widow who became a widow after the twenty-second day of November one thousand nine hundred and twenty-three has married or shall hereafter marry a minister or professor and be the survivor of the said marriage her annuity shall be regulated in accordance with the annual rate payable by her last husband.

5. Where a minister or professor married prior to the twenty-second day of November one thousand nine hundred and twenty-three a widow who at that date was in right of an annuity in virtue of the Church of Scotland Ministers' Widows' Fund Acts 1779 to 1890 such annuity shall continue to be paid to her so long as she remains the wife of the said minister or professor subject to alteration as provided in this Order.

PART II.

PROVISIONS FOR CHILDREN OF CONTRIBUTORS AT THE TWENTY-
SECOND DAY OF NOVEMBER ONE THOUSAND NINE HUNDRED
AND TWENTY-THREE.

1. If the widow of a contributor who was a contributor at the twenty-second day of November one thousand nine hundred and twenty-three or who had died prior thereto shall die or remarry before the expiry of ten years from the twenty-sixth day of May or the twenty-second day of November first occurring after the commencement of her annuity and her deceased husband shall

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have left a child or children who at the said widow's death or remarriage shall be under the age of sixteen years such child or children shall be entitled to such a sum of money as shall be equal to ten times the said widow's annuity calculated on the original scale of ten pounds fifteen pounds twenty pounds or twenty-five pounds according to the annual rate payable by the contributor deducting so much thereof as shall have been received or be receivable by her relative to the aforesaid scale including such proportion of a year's annuity likewise on the aforesaid scale as may have been paid or payable from the date of the husband's death and the said sum shall be divided equally among such children if there be more than one such child. A.D. 1930.
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2. If a contributor who was a contributor at the twenty-second day of November one thousand nine hundred and twenty-three die without leaving a widow but leaving one or more children such child or children shall be entitled to a sum equal to ten times the original annuity that would have been payable to their father's widow videlicet one hundred pounds one hundred and fifty pounds two hundred pounds or two hundred and fifty pounds according to the annual rate payable by the contributor and the said sum if there be more than one such child shall be divided equally among such children.

3. If a contributor who was a contributor at the twenty-second day of November one thousand nine hundred and twenty-three die without leaving a widow but leaving one or more children under the age of eighteen years in addition to the provision contained in the preceding section an annuity of twenty-nine pounds thirty-two pounds thirty-four pounds or thirty-seven pounds according to the aforesaid respective annual rates shall be payable to such child or children as from the date of the contributor's death until the youngest child attains the age of eighteen years and if there be more than one child under eighteen years of age the said annuity shall be divided equally among them.

4. The provisions to children of contributors who were contributors at the twenty-second day of November one thousand nine hundred and twenty-three falling due in consequence of the death of their fathers or of the death or remarriage of the widows of their fathers in any one year computed from twelve o'clock noon on the twenty-second day of November to twelve o'clock noon on the twenty-second day of November in the year following shall be payable on the twenty-sixth day of May following.

5. The provisions for children contained in the second part of this schedule shall not be applicable to the children of contributors who are within the exceptions in regard to contributors who may reside furth of Great Britain and Northern Ireland contained in sub-paragraphs (a) and (b) of paragraph 1 of the Second Schedule to this Order.

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PART III.

PROVISIONS FOR CHILDREN OF CONTRIBUTORS WHO BECAME CONTRIBUTORS BETWEEN THE TWENTY-SECOND DAY OF NOVEMBER ONE THOUSAND NINE HUNDRED AND TWENTY-THREE AND THE APPOINTED DATE.

For those who became contributors during the period from the twenty-second day of November One thousand nine hundred and twenty-three to the appointed date excepting those who have ceased to be contributors under the exceptions in regard to contributors who may reside furth of Great Britain and Northern Ireland contained in sub-paragraphs (a) and (b) of paragraph 1 of the Second Schedule to this Order the provisions for children shall be as follows :—

- (1) If a contributor being a widower die leaving one or more children under the age of eighteen years such orphan child or children shall receive an annual family provision equal to the amount of the annuity (including augmentations) to which the widow of the contributor would have been entitled had he died leaving a widow which provision shall be payable to such child or children as from the date of the said contributor's death at the same time and in the same manner as the annuities to widows and subject to alteration as provided in this Order until the youngest child attains the age of eighteen years and if there be more than one child under the age of eighteen years the provision shall be divided equally among such children :
- (2) If a contributor die leaving a widow and one or more children under the age of eighteen years such child or children shall receive an annual family provision equal to one-half of the said widow's annuity (including augmentations) which provision shall be payable to such child or children as from the date of the husband's death at the same time and in the same manner as the annuity to a widow and subject to alteration as provided in this Order until the youngest child attains the age of eighteen years and if there be more than one such child the said provision shall be divided equally among such children This provision shall be payable in addition to the widow's annuity but on her death shall cease and in lieu thereof the annuity to which she was entitled shall thereafter be the provision commencing as from the date on which the last payment of the annuity was due and payable in the same manner as aforesaid subject to alteration as aforesaid until the youngest child attains the age of eighteen years.

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FOURTH SCHEDULE.

A.D. 1930.

CALCULATION OF INCREASE OR DIMINUTION IN THE AMOUNTS OF
ANNUITIES TO WIDOWS AND CHILDREN OF CONTRIBUTORS.

1. In the case of an increase of the annuities the portion allotted to the widows and children of contributors in accordance with the section of this Order of which the marginal note is " Rule for increase or diminution " shall except as regards the annuities to children payable under paragraph 3 of Part II. of the Third Schedule to this Order be applied to increase the annuities to such widows and children proportionately to the annual rate of the class to which the contributor belonged.

2. In the event of a diminution of the annuities the share of the estimated capital deficit falling against the widows and children of contributors shall except as regards the annuities to children payable under paragraph 3 of Part II. of the Third Schedule to this Order be met by reduction of the annuities to such widows and children proportionately to the annual rate of the class to which the contributor belonged. Provided always that if at any time the annuities payable to widows of contributors shall fall below the respective amounts of forty-one pounds forty-nine pounds fifty-seven pounds and sixty-five pounds any diminution shall so long as the annuities remain below the said sums respectively be applied equally to all such annuities and shall not be proportionate to the annual rates payable by the contributors and in the event of such diminution any increases thereafter shall be similarly applied equally to all such annuities until they shall again be restored to the above amounts.

3. Any increase or diminution in the annuities to children payable under paragraph 3 of Part II. of the Third Schedule to this Order shall be equal to the increases or diminutions in the annuities to widows according to the respective annual rates.

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